

Anayatur Rahman v. U.P. Power Corporation Ltd./P.V.V.N. Ltd. & Ors.

High Court of Judicature at Allahabad · Division Bench · 11 October 2013 · WRIT - C No. - 57186 of 2013 · **Writ not entertained; petitioner relegated to Clause 6.5; decide within three months.**

HEADNOTE

A writ challenging electricity bills as excessive on their face is not entertained. Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the remedy for disputed bills and bill accuracy: complaint before the competent authority (here, the Executive Engineer). Liberty to raise the grievance under that provision, to be dealt with in accordance with law preferably within three months of presenting a certified copy of the order.

FACTUAL SUMMARY

Petitioner Anayatur Rahman challenged electricity bills issued by U.P. Power Corporation Ltd./Purvanchal Vidyut Vitran Nigam Ltd. showing a balance of more than Rs. 44,000 as excessive on their face. Respondents 2 and 3 submitted that a dispute of this nature had to be decided by the Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited, Khand-1, District Mau. The Division Bench declined to entertain the writ and left the petitioner to the Supply Code complaint route.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bills — complaint before competent authority

HOLDING

Clause 6.5 of the U.P. Electricity Supply Code, 2005 deals with disputed bills and accuracy in the bill; the consumer's remedy is a complaint before the competent authority, which must proceed to redress the grievance. The writ was not entertained. Liberty was given to raise the grievance under that provision, to be dealt with in accordance with law preferably within three months from presentation of a certified copy of the order.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLED BALANCE EXCEEDING RS. 44,000 WAS EXCESSIVE

Merits of the bill dispute left to the competent authority under Clause 6.5.